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Case Number: 25PSCV04619 Hearing Date: July 8, 2026 Dept: 6

CASE

NAME: Jon

Felix v. Joseph Miramontes, et al.

Defendants

Swinerton Builders and Joseph Miramontes' Motion to Withdraw Case from Pathway Pilot Program, Vacate Trial, and Set Further CMC

TENTATIVE

RULING

The Court GRANTS in part Defendants Swinerton Builders and Joseph Miramontes' Motion to Withdraw Case from Pathway Pilot Program, Vacate Trial, and Set Further CMC. The Court advances and vacates the current trial date of February 17, 2027, and all corresponding hearing dates and deadlines. The Court will set a new trial date and all corresponding dates and deadlines at the hearing on this motion.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an auto accident case. On December 23, 2025, plaintiff Jon Felix (Plaintiff) filed this action against defendants Joseph Miramontes (Miramontes), Swinerton, Swinerton Builders, Swinerton Builders International, Inc., Swinerton Energy Inc., Swinerton Incorporated, Swinerton Management & Consulting, LLC, The Swinerton Foundation (collectively, Defendants), and Does

1 to 100, alleging causes of action for motor vehicle and general negligence.

On June 4, 2026, Plaintiff dismissed Defendants Swinerton Builders International, Inc., Swinerton Energy Inc., The Swinerton Foundation, Swinerton Management & Consulting, LLC, and Swinerton from this action without prejudice.

On May 22, 2026, Defendants Swinerton Builders and Joseph Miramontes moved to withdraw the case from pathway pilot program, vacate trial, and set further CMC. The motion is unopposed.

LEGAL STANDARD

“Continuances are granted only on an affirmative showing of good cause requiring a continuance.” (In re Marriage of Falcone & Fyke (2008) 164 Cal.App.4th 814, 823.) A trial court has broad discretion in considering a request for a trial continuance. (Pham v. Nguyen (1997) 54 Cal.App.4th 11, 13-18.) California Rules of Court, rule 3.1332 sets forth factors for the Court to consider in ruling on a motion to continue trial. Whether the parties have stipulated to the postponement is a relevant factor for consideration. (See Code Civ. Proc., § 595.2, but see Lorraine v. McComb (1934) 220 Cal. 753, 756-757 [finding a stipulation to be merely “directory”].)

(c) Grounds for continuance

Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include:

- (1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;
- (2) The unavailability of a party because of death, illness, or other excusable circumstances;
- (3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5) The addition of a new party if:

(A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

(d) Other factors to be considered

In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

(1) The proximity of the trial date;

(2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3) The length of the continuance requested;

(4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5) The prejudice that parties or witnesses will suffer as a result of the continuance;

(6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the

need to avoid delay;

(7) The court's calendar and the impact of granting a continuance on other pending trials;

(8) Whether trial counsel is engaged in another trial;

(9) Whether all parties have stipulated to a continuance;

(10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11) Any other fact or circumstance relevant to the fair determination of the motion or application.

(Cal.

Rules of Court, rule 3.1332, subds. (c), (d).)

DISCUSSION

Defendants Swinerton Builders and

Joseph Miramontes (collectively, Moving Parties) argue that the case should be withdrawn from the Pathway Pilot Program because the matter involves extensive and complex discovery, including allegations of traumatic brain injury, numerous orthopedic injuries, and more than fifteen treating providers, resulting in over thirty subpoenas already issued. Moving Parties contend that the significant volume of medical records, expert evaluations, and depositions cannot reasonably be completed within the program's accelerated 14-month schedule. Moving Parties also argue that Plaintiff has substantial pre-existing injuries and a prior workers' compensation claim, further increasing the discovery burden needed to assess causation and damages. Additionally, Moving Parties contend their counsel has an unavoidable conflict with the currently scheduled February 17, 2027 trial date due to a concurrent 25-day trial in another matter. Moving Parties indicate that Plaintiff's counsel agrees to leaving the Pathway Program but does not agree to continuing the trial date. In the alternative, Moving Parties ask that the trial be continued to September 1, 2027, or later if the Court declines to remove the case from the program.

The Court finds withdrawal from the

Pathway Pilot Program unwarranted. Moving Parties' only real concern here is the scheduled trial date, which can be easily addressed by continuing the trial in this action. The Court finds a trial continuance appropriate based on Moving Parties' representations concerning the complexity of this case due to the injuries at issue and the amount of discovery that this case will require. (See Zech Decl., ¶¶ 5-6; Cal. Rules of Court, rule 3.1332, subds. (c)(6), (d)(5), (d)(10)-(d)(11).) The Court also finds the scheduling conflict with Moving Defendants' counsel with respect to the currently scheduled February 17, 2027 trial date justifies continuing the trial date. (Zech Decl., ¶ 7; Cal. Rules of Court, rule 3.1332, subd. (d)(8).)

Based on the foregoing, the Court GRANTS in part the motion. The Court will advance and vacate the current February 17, 2027 trial date and all corresponding hearing dates and deadlines, and set new dates at the hearing on this motion.

CONCLUSION

The Court GRANTS in part Defendants Swinerton Builders and Joseph Miramontes' Motion to Withdraw Case from Pathway Pilot Program, Vacate Trial, and Set Further CMC. The Court advances and vacates the current trial date of February 17, 2027, and all corresponding hearing dates and deadlines. The Court will set a new trial date and all corresponding dates and deadlines at the hearing on this motion.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.